

**SINGLE SOURCE DETERMINATION USING
SIMPLIFIED ACQUISITION PROCEDURES (SAP) UNDER THE
SIMPLIFIED ACQUISITION THRESHOLD (SAT)**

AUTHORITY: FAR 13.106-1(b)(1)

Requirement Title / Name: Tommy Belone, Facility Manger

Purchase Request Number: 44039960

Originating Office (Customer): New Mexico Navajo Central

Division / Unit / Branch: Facility Mangement

1. This is a justification for other than full and open competition.

Agency: Bureau of Indian Education

IA Acquisition Office: A23 Bureau of Indian Education

2. Description of supplies or services required to meet agency needs.

Water heater replacement for Eastern Navajo Dine Justice Center, Crownpoint, NM.

3. Identification of the single source to be solicited.

Name of Proposed Contractor: Ferguson Trades

Street Address: 801 Candelaria NE

City, State, Zip: Albuquerque, NM 87107

Phone: 505-345-0171

4. Reason for authority cited. The Contracting Officer has determined the circumstances of the contract deem only one source reasonably available.



Urgency: The nature of the requirement has been deemed urgent and following competitive procedures would result in unacceptable delays.



Only One source: Highly specialized supply/service (for example technological/ specific training requirements) contractor must possess unique qualifications.



Exclusive Licensing Agreement



Other Insert reason: (could be a special statue, etc.):

5. Rationale. Provide an explanation that supports the reason cited in #4.

Ferguson Trades will provide the new high-efficiency commercial gas water heater unit. The present unit no longer provides hot water and has reached a condition where repair is not feasible or cost effective due to external component failure and age-related deterioration. they have qualified and licensed staff in installing water heaters. A reliable hot water supply is critical within a juvenile detention setting to maintain proper sanitation, hygiene, and overall health standards. Replacing the damaged water heater with a new energy efficient unit is necessary to restore normal operations, maintain sanitary conditions, and ensure compliance with detention facility requirements.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

Efforts were made to identify potential sources for the procurement of a replacement commercial water heater; however, this requirement is being processed as a sole source award to Ferguson Enterprises, as they are determined to be the only responsible source capable of providing the required equipment within the necessary time-frame. The project involves the removal and replacement of an existing non-functioning water heater at the Eastern Navajo Diné Justice Center in Crownpoint, NM. The replacement unit must be a high-efficiency commercial gas water heater comparable to model SSUF1 19500PEA (119-gallon Tall LP, 500,000 BTU), meeting all current code and operational requirements. Due to the specific equipment requirements, compatibility needs, and urgency to restore essential hot water service, Ferguson Enterprises has been identified as the most appropriate and readily available vendor.

NOI will be posted at www.sam.gov

7. Originating Office Attestation:

I certify that the technical data which forms a basis for this justification is complete and accurate and meets the Government's minimum needs.

MATILDA SMITH Digitally signed
by MATILDA
SMITH
Date: 2026.03.25
11:09:02 -06'00'

Matilda B. Smith

Business Technician

BIE-NMNCA-Facility Management

8. Contracting Officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief:

I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.

CHARMAINE WILLIAMS-JAMES Digitally signed by
CHARMAINE
WILLIAMS-JAMES
Date: 2026.03.25
11:14:33 -06'00'

Name

Contracting Officer

Office